

U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9948
(CORRECTED COPY)

DEC 2 - 1988

1. PFG Industries, Inc., Pittsburgh, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages of flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the one-time shipment of ethyl chloride in ICC 106A500 multi-unit tank car tanks for removal of contents, testing and reconditioning or scrapping, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on PFG Industries, Inc.'s application dated March 24, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon, and supplemental letter dated October 28, 1988.

3. HAZARDOUS MATERIALS (Descriptor and class). Ethyl chloride classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ethyl chloride

5. REGULATION AFFECTED. 49 CFR 173.31(d) and 173.123

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are four ICC 106A500 multi-unit tank car tanks that have not been tested in accordance with the requirements of 49 CFR 173.31(d), Retest Table 2.

b. Each multi-unit tank car tank must be visually inspected prior to shipment to insure that it has not been damaged during loading.

c. Rear end protection for the motor vehicle must be provided which meets the requirements of 49 CFR 178.340-88(b) and 393.86.

d. Each portable must be secured to the motor vehicle in conformance with the requirements of 49 CFR 393.100 through 393.106.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Transportation of these multi-unit tank car tanks between Barborton, Ohio and Lake Charles, Louisiana must be by a trucking company that is owned by PFG Industries, Inc.

c. Each multi-unit tank car tank must be plainly marked on both side near the middle, in letters at least two inches high on a contrasting background. "DOT-E 9948".

9. REPORTING REQUIREMENTS. PEG Industries, Inc. shall report any incident involving loss of contents or damage to the multi-unit tank car tanks described herein to the OHMT as soon as practicable.

10. EXPIRATION DATE. December 31, 1988, or upon the arrival of the last multi-unit tank car tank in Lake Charles, Louisiana, which ever occurs first.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

DEC 2 - 1988
(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA